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Case Number: 26NNCP00461 Hearing Date: September 10, 2026 Dept: T

Estela

Rosalva Chilel Felipe, an individual vs. Pasadena Unified School District, a governmental entity

Petition

for Relief Pursuant to Government Code § 946.6

Moving Party: Petitioner

Estela Rosalva Chilel Felipe

Responding Party: None

Tentative Ruling: Grant

RULING

"If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4." (Gov. Code § 946.6, subd.

(a).) The petition shall show each of

the following: (1) the application under section 911.4 was denied or deemed denied, (2) the reason for the failure to present a timely claim per section 911.2, and (3) the information required in section 910. (Gov. Code § 946.6, subd. (b).) "The applicant has six

months to seek relief in court 'after the application to the [entity] is denied or deemed to be denied.' The six-month period 'operates as a statute of limitations. It is mandatory, not discretionary.' [Citation.]" (J.M. v. Huntington Beach Union

High School Dist. (2017) 2 Cal.5th 648, 653, alterations and italics in original.) The Court must grant relief under section 911.4 if it finds that the application was made within a reasonable time not to exceed that specified in section 911.4(b), was denied or deemed denied, and that “[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” (Gov. Code § 946.6, subd. (c).)

On May 13, 2026, within a reasonable time and less than one year after the occurrence of the underlying slip-and-fall incident on September 10, 2025, Petitioner Estela Rosalva Chilel Felipe (“Petitioner”) presented the Pasadena Unified School District (the “District”) with a written application for leave to present a late government claim against the District. (Moore Decl. ¶ 3; id. ¶ 8, Exh. A.) On June 17, 2026, the District provided Petitioner with notice of the application’s denial, which the District stated was effective as of that same date. (Id. ¶ 9, Exh. B.) Furthermore, Petitioner’s counsel declares that Petitioner’s failure to timely file a claim against the District was the result of excusable neglect, as counsel’s diligent efforts to investigate the identities of the owner and renter of the subject property were initially thwarted by errant information received from the Los Angeles County Assessor’s Office and a contacted representative of the Young and Healthy Headstart School. (Id. ¶¶ 4–6.) Based on the foregoing, the Court finds that Petitioner has shown that she is entitled to relief under Section 946.6. Therefore, the petition is granted.

Petitioner
Estela Rosalva Chilel Felipe’s Petition for Relief Pursuant to Government Code § 946.6 is GRANTED.